

Ian Woodland

From: Jonathan Pope <jdpope@btinternet.com>
Sent: 11 July 2014 14:44
To: John Jeffers
Cc: Ian Woodland; Ian Bickers; nigel
Subject: Re: Big probs!!!!!!

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John

Thanks for your further comments. I'll ask Ian W to copy this correspondence to the other residents for their information. I'm glad you can make the meeting.

I'm sure all residents are as concerned as you are to safeguard their investments. And yes it is indeed depressing. Given where we are, the best way to do that and quickly will be to pursue Option 2 - take the registration immediately - and then work through rectifying each defective title as fast as possible. Taking the registration immediately removes the problem that properties cannot be sold due to lack of transfer of the communal land. That will then leave the archway and roadway issues to be resolved. The latter is primarily a legal issue between yourself and Thameside. We can also explore thereafter what remedies we can extract from Thameside.

As to what happened in 2006 onwards, you're probably best placed to know why these problems arise since you were paid as Thameside's agent to sort out its relationship with the other residents, and also the then management company's Company Secretary and first Director. Any light you can shed on this at the meeting will be very useful. However a long enquiry into 8 year old matters is not going to move us forward. The meeting needs to focus on what we do now.

I also hope we'll have a good attendance and we're encouraging anyone unable to be there to let us have their views so they can be included in the debate.

Jonathan

On 11 Jul 2014, at 11:40, John Jeffers <edgwarerover@live.co.uk> wrote:

Jonathan,

Thank you for your prompt response!

Yes, I would like you to copy this to others. My particular interest is to safeguard the value of my "investment" and I do not wish for anybody to be landed with an albatross such as this. It really is depressing .

I cannot appreciate how it was that all of the original purchases went through with little or no queries whereas, now, we have this preposterous impasse.

At least, we might have a lively meeting on the 20th and I hope that there will be an 100% turnout.

Many thanks again,

John J

From: jdpope@btinternet.com
To: edgwarerover@live.co.uk

CC: ian.bickers@btinternet.com; iwoodland@hotmail.com; nigelhallam53@msn.com

Subject: Re: Big probs!!!!!!

Date: Fri, 11 Jul 2014 10:36:00 +0100

John

Thanks for your email.

Taking your points in turn :

The legal process followed the normal sequence in which the Land Registry procedure comes after the completion. Since Thameside and its solicitor were maintaining throughout the Mediation and afterwards that their communal land plan was an accurate representation of what they would transfer, it was accepted on that basis. Perhaps we should indeed have been more suspicious, but given that this plan has been used for 7 years and had been accepted as the basis for 14 legally approved conveyances, we were not. I might also add that you yourself were not aware of the issues arising in relation to your own property, so it's very easy to be wise after the event. It's neat footwork to try to put the blame for all this back on the CMC directors, but this problem actually arises from failures by Thameside and individual residents, yourself included, to check the accuracy of their own property conveyances. It falls to CMC to try to unscramble this mess. We are where we are.

Management charges do not only relate to the communal land, although they mostly do. If you wish to propose a moratorium, you have every right to do so. The directors will obviously not recommend one and it will be a matter the meeting can discuss and vote on if you propose it. In practice all this would do is call a halt to all active work by CMC, and in particular legal work, which does not seem helpful in the present circumstances.

Regarding the experience of Directors, you have rightly referred to the two Ians. I believe Nigel's background is industrial production management. I live in Soulbury not Stewkley. My own background includes 13 years as Estates Director for a major charity with a large and mixed property portfolio. None of us claims to be "*qualified*" to be the CMC Directors and Company Secretary and that's not the basis on which we were appointed or do all the work for CMC. We are all volunteers doing our best on behalf of everyone else. You can take it from me we would be very happy not to have to spend our time on this. As to the "*competence*" of our legal advice, our solicitors have been in business since the 1770's and in my view have done a sound job in forcing this long saga to the point where Thameside have had to transfer the land, albeit with their defective title plan. They have also now been able to discover for us all the incompetence of all the work done by other solicitors in 2006-8, including your own.

There is a straightforward opportunity to close this matter once and for all very soon – Option 2 – and any other approach will simply leave us all in limbo and unable to sell our properties. I'd recommend you vote for it, but that's your choice.

Let me know if you wish me to copy this correspondence to the other residents, which I'm content to do.

Jonathan

From: [John Jeffers](#)

Sent: Friday, July 11, 2014 9:57 AM

To: jdpope@btinternet.com

Subject: Big probs!!!!!!

Jonathan,

All this strikes me as a major disaster and a resolution must be found for all of us involved with this quagmire. I cannot help but wonder how it is that £10,000 was spent on the tribunal hearing without, first having a "pro forma" view of the land registry entries that were due to be put in place. Further, it seems to me that CMC management is paying for the maintenance of property that still resides within the responsibility of Thameside and I will want to press for a moratorium on all annual management charges until such time as this is

resolved. If expenditure is to be incurred, then it should be put towards competent legal advice.

On this latter point, I would always want to express appreciation for the hard work that has been done by yourself and the two Ian's, but I must now ask if any of you have experience or qualifications that would engender confidence in all of us involved. I know Ian Bickers is a deputy prison governor and that Ian Woodland is an IT expert but I know nothing of your background other than the fact that you live in Stewkley.

Would please be so good as to enlighten me?

Many thanks for your attention to this.

John J